

SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

Present:

Mr. Justice Yahya Afridi, CJ
Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Review Petitions No.4 to 33 of 2026

[For review of the judgment dated 04.12.2025 passed by this Court]

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Civil Appeals No. 1116 to 1145 of 2025

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| 1. | Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore. Versus Muhammad Rizwan and others. | In CRP.4/26 |
| 2. | Jamshed Ullah Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others. | In CRP.5/26 |
| 3. | Kifayat Ullah Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others. | In CRP.6/26 |
| 4. | Kashif Ali Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others | In CRP.7/26 |
| 5. | Sana Ullah Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others | In CRP.8/26 |
| 6. | Saif Ullah Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others | In CRP.9/26 |
| 7. | Nadeem Ullah Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others. | In CRP.10/26 |
| 8. | Amjad Ali Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others | In CRP.11/26 |
| 9. | Ali Rahmand Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others. | In CRP.12/26 |
| 10. | Imran Khan Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others. | In CRP.13/26 |
| 11. | Kamran Khan Versus Collector of Customs Collectorate of Customs (Appraisement) (West), Lahore and others. | In CRP.14/26 |

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| 12. | Yasir Zaman Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.15/26 |
| 13. | Hazrat Hussain Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.16/26 |
| 14. | Shan Zeb Khan Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.17/26 |
| 15. | Kamran Ahmed Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.18/26 |
| 16. | Musa Versus Collector of Customs Collectorate of
Customs (Appraisalment) (West), Lahore and others. | In CRP.19/26 |
| 17. | Muhammad Shakir Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.20/26 |
| 18. | Arshad Ali Versus Collector of Customs Collectorate
of Customs (Appraisalment) (West), Lahore and
others | In CRP.21/26 |
| 19. | Maqbool Hussain Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.22/26 |
| 20. | Anees Ahmed Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.23/26 |
| 21. | Farid Ullah Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others | In CRP.24/26 |
| 22. | Shakoore Khan Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.25/26 |
| 23. | Akhtar Hussain Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.26/26 |
| 24. | Ubaid Ullah Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.27/26 |
| 25. | Khalil ur Rehman Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.28/26 |
| 26. | Shahzeb Versusu Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others | In CRP.29/26 |
| 27. | Naimat Ullah Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.30/26 |

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| 28. | Shehbaz Ahmed Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.31/26 |
| 29. | Shahzeb Khan Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others. | In CRP.32/26 |
| 30. | Murad Ali Versus Collector of Customs
Collectorate of Customs (Appraisalment) (West),
Lahore and others | In CRP.33/26 |

For the Petitioners: <i>[In all cases]</i>	Mr. Mukhtar Ahmed Ayaz, Special Attorney for all petitioners.
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For the Respondents: <i>[In all cases]</i>	Mr. Haris Azmat, ASC.
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Date of Hearing:	19.05.2026.
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ORDER

Muhammad Shafi Siddiqui, J. Through these review petitions, the petitioners seek review of the judgment dated 04.12.2025 passed by this Court in Civil Petitions No.4334 to 4363 of 2025.

2. The judgment under review arose out of a set of matters concerning the import of vehicles under Appendix-E of the Import Policy Order, 2022, wherein and whereby the respondents had imported vehicles beyond the prescribed age limit. The departmental authorities, treating such import as a violation of the mandatory conditions governing the said scheme, initiated proceedings that culminated in orders of outright confiscation of the vehicles along with the imposition of a penalty. The Appellate Tribunal Inland Revenue, while maintaining the orders of confiscation, extended to the respondents the facility of redemption upon payment of a fine, which view subsequently not altered by the High Court. Upon grant of leave, this Court examined the legal framework governing such imports, particularly the interplay between Appendix-E of the Import Policy Order, 2022, and S.R.O. 499(I)/2009, and by the judgment sought to be reviewed, held that vehicles

imported in breach of the prescribed conditions were not entitled to release on redemption fine. Consequently, the judgments of the High Court and the Tribunal were set aside, and the orders passed by the departmental authorities were restored.

3. Counsel for the petitioners is not in attendance today.

4. The aforesaid judgment is sought to be reviewed on the solitary ground that this Court, while interpreting the scope and effect of S.R.O.499(I)/2009 read with Appendix-E of the Import Policy Order, 2022, took a view which is allegedly at variance with certain earlier orders passed by Benches of this Court. The two leave refusing orders, which were addressed in the judgment, were pressed again for consideration.

5. It must be noted that the jurisdiction of this Court under Article 188 of the Constitution of the Islamic Republic of Pakistan, 1973, read with Order XXVI of the Supreme Court Rules, 2025, is a limited one, circumscribed by grounds analogous to those contained in Order XLVII Rule 1 of the Code of Civil Procedure, 1908. The said jurisdiction is to be exercised with utmost caution and restraint and does not permit the Court to sit in appeal over its own judgment or to rehear and re-argue the matter already adjudicated. The scope of review is confined to correction of a patent and self-evident error apparent on the face of the record, which does not require elaborate reasoning to be established, as reiterated in case of *District Education Officer*¹. Even where such an error is alleged, it must further be demonstrated that the same has had a substantial effect on the outcome of the case, for mere irregularity or the possibility of a different view does not warrant interference in review jurisdiction, as held in the case *Government of*

¹ District Education Officer (Female), Charsadda v. Sonia Begum (PLD 2025 Supreme Court 720).

*Balochistan*². Where the Court has consciously and deliberately taken a view on a question of law or fact, the same cannot be reopened in review merely on account of dissatisfaction with the result or repetition of earlier submissions.

6. The reliance placed by the petitioners on certain earlier orders of this Court is wholly misconceived, for the reason that the said orders failed to withstand the scrutiny on the touchstone of the doctrine of *per incuriam*, as correctly held in the judgment under review.

7. It may further be observed that in the case of *Bashir Ahmad*³, a three-member Bench of this Court, while interpreting S.R.O.499(I)/2009, adopted the same construction/view as has been set out in the judgment under review. In such circumstances, no inconsistency or divergence in judicial opinion arises so as to warrant interference in review jurisdiction, and the contention to the contrary is wholly misconceived.

8. The maxim *per incuriam*, as explained by this Court in *Suo Moto*⁴, denotes a decision rendered in ignorance or forgetfulness of a relevant statutory provision or binding authority, such that the reasoning on which it is founded becomes demonstrably erroneous and the decision itself ceases to have precedential value. The necessary consequence of such a declaration is that the judgment is to be treated as having no binding force and is liable to be ignored. In the present case, the earlier orders relied upon by the petitioners, being in the nature of leave-refusing orders, neither adverted to nor interpreted the governing provisions of Appendix-E of the Import Policy

² Government of Balochistan v. Muhammad Yasir (2025 SCMR 367).

³ Bashir Ahmad v. Director, Directorate of Intelligence and Investigation (Customs), FBR, Peshawar (2025 SCMR 684).

⁴ *Suo Moto Regarding Pensionary Benefits of Judges of the Superior Courts from the Date of their Respective Retirements, Irrespective of their Length of Service as such Judges* (PLD 2013 SC 829).

Order, 2022 read with S.R.O.499(I)/2009, which form the core statutory framework regulating the controversy. The omission to consider these provisions strikes at the very root of the reasoning, thereby attracting the doctrine of *per incuriam*. Once so characterised, such orders cannot be relied upon to assert any conflict of legal position or to invoke the jurisdiction of this Court for reconsideration. The judgment under review, having consciously examined the relevant statutory scheme and applied the correct legal principles, cannot be reopened in review on the basis of such non-binding and *per incuriam* orders, and the contention raised in this regard is, therefore, without substance.

9. Even otherwise, the present review petitions proceed on the assumption that the interpretation placed by this Court upon the relevant provisions of Appendix-E of the Import Policy Order, 2022, and S.R.O. 499(I)/2009 is erroneous and requires reconsideration. Such a contention falls outside the permissible scope of review jurisdiction. In the case of *Oil and Gas Regulatory Authority*⁵, this Court held that where a judgment proceeds solely upon a pure question of law, particularly one involving statutory interpretation, it is not sufficient for a review petitioner merely to contend that the interpretation adopted by the Court is incorrect, for acceptance of such a plea would effectively convert review proceedings into a rehearing of the case. The Court further observed that in such circumstances, the only viable ground for review would be to establish that the decision under review was rendered *per incuriam*. The fact is that the earlier referred orders/judgments were categorized as *per incuriam* and not the later, as no statutory provision stated to have been ignored, whereas the earlier ones did. As discussed above, the judgment dated 04.12.2025 was

⁵ Oil and Gas Regulatory Authority v. Gas and Oil Pakistan Ltd. (PLD 2025 SC 351).

rendered after a conscious examination of the governing statutory framework, whereas the earlier leave-refusing orders relied upon by the petitioners were found to be per incuriam for having failed to consider the same. The foundation of the present review petition, therefore, is legally unsustainable.

10. In view of the foregoing, we find that no error apparent on the face of the record has been pointed out in the judgment under review, nor does the case fall within any of the recognized grounds warranting exercise of review jurisdiction. The contentions raised amount to a re-agitation of issues already considered and decided by this Court, which is clearly impermissible in law. Consequently, these review petitions, being devoid of merit, are dismissed.

Chief Justice

Judge

Judge

Islamabad:
19.05.2026
Approved for Reporting
[Simra Sohail, LC]